Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1236
Claimant:	Dylan Ferguson
Adjuster:	Darin Tyler

06/27/2023 - Claim opened for a sideswipe collision that occurred while the insured was changing lanes. Insured reports the other vehicle's driver moved into the lane without signaling. Both drivers gave consistent accounts at the scene. Police report requested. Initial contact made with the claimant, who reports neck and back strain and has not retianed an attorney.

06/29/2023 - Spoke with claimant regarding symptoms. Claimant describes neck stiffness and lower back soreness that began within hours of the impact. Claimant has not yet sought medical treatment but plans to see a physician. Advised claimant of the medical payments coevrage available under the policy and provided the list of in-network providers.

07/07/2023 - Reviewed photos submitted by both parties. Damage to the rear quarter panel of the insured vehicle and the front passenger side of the claimant vehicle is consistent with a sideswipe. No independent witnesses identified at this time. Scene diagram from the police report indicates both vehicles were traveling in the same direction.

07/09/2023 - Claimant confirmed she is not represented by counsel. Explained the claims process, including the timeline for repair estimates and how bodily injury evaluation works. Claimant provided medical records from her initial urgent care visit, which document cervical and lubmar strain with a recommendation for physical therapy. Treatment is ongoing.

07/15/2023 - Liability review in progress. Based on the police report, statements, and physical damage evidence, liability appears to lean toward the other driver's unsafe lane change, pending receipt of their recorded statement. Bodily injury reserve set based on current treatment plan. Will follow up with claimant after physical therapy evaluation is completed.

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Recorded Statement

Claim number:	C-1236
Statement of:	Dylan Ferguson
Taken by:	Darin Tyler
Date:	06/30/2023

Q: Thanks for taking the time to give this recorded statement. Please state your full name for the record.

A: I'd rather not give my full name on a recording, but I can confirm I'm the driver of the vehicle involved.

Q: That's fine. Can you describe where the collision took place?

A: It was on a multi-lane highway in Katy, Texas, in the right lane headnig toward the center of town. Traffic was moving steadily, maybe around forty miles an hour.

Q: Walk me through what happened right before the impact.

A: I was moving over from the right lane into the middle lane because I needed to get to an exit. I checked my mirror, saw the lane looked clear, and signaled. As I started to shift over, another car came up alongside me and clipped the side of my vehicle.

Q: Did you see the other vehicle before the contact?

A: Not really. It was in my blind spot, and I didn't see it until I heard the scrape and felt the jolt.

Q: Did either of you stop afterward?

A: Yes, we both pulled onto the shoulder. The other driver got out and we exchanged information.

Q: How are you feeling physically since the collision?

A: My neck is stiff and sore, especially when I turn my head to the left. My lower back aches too, and it's worse when I sit for long stretches. I'm taking over-the-counter pain relievers and I've scheduled a visit with my doctor.

Q: Did you seek medical attention at the scene or afterward?

A: I went to an urgent care clinic the same afternoon, and they diagnosed me with neck and back strain. They recommended rest and some physical therapy.

Q: Is there anything else you'd like to add to your statement?

A: Only that I was trying to drive carefully and I'm willing to provide any photos or paperwork you need.

Q: Thank you. This concludes the statement.

A: Thank you.